

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/10/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0002687

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: LINDLEY PEREZ ROSS

and

RESPONDENT: AARON HALE PHILLIPS

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION
- REIMBURSEMENT

RULING

This matter is set for hearing on Petitioner/Mother's 5/16/2026 Request for Order ("RFO") re: Child Custody/Visitation regarding the parties' two children: Baxter (DOB 6/19/2013) and Caroline (DOB 9/16/2015), and for reimbursement for last-minute flight changes by Respondent/Father. Father did not file a Responsive Declaration to the RFO. However, both parties were interviewed together by Family Court Services ("FCS"), and FCS filed its Report & Recommendations with the Court on 7/6/2026.

Mother and the children moved to California from Tennessee six years ago; they live in Novato. Father continues to reside in Memphis, Tennessee. The parties were divorced in Tennessee, and on 1/14/2020 a Permanent Parenting Plan Order was entered in Tennessee. The Parenting Order and an Out-of-State Support Order were registered in California with this Court.

Mother requests sole legal and physical custody of the children, and that their visits with Father be supervised due to what she describes as a very serious problem with alcohol, which makes it unsafe for the children to be with him without supervision. Although Father acknowledges his struggles with alcohol as a long-standing problem with intermittent periods of sobriety, he has been unable to sustain his sobriety, which puts the children's safety at risk.

Having reviewed and considered Mother's written submission, as well as the FCS Report & Recommendations, the Court finds that it is in the best interests of Baxter and Caroline to adopt the FCS Recommendations, as modified below:

1. All current orders shall remain in effect with the following additions/modifications.

Parental Responsibilities

2. The parents shall continue to share joint legal custody of both children. The parents shall share in the responsibility and confer in good faith on matters concerning the children's health, and welfare; however, per the Permanent Parenting Plan Order, Mother shall have sole decision-making regarding the children's education. Both parents shall have access to the children's school, medical, mental health, and dental records and the right to consult with professionals who are providing services to the child.
3. Mother shall have sole physical custody of both children.

Timeshare Schedule

4. Both children shall continue to live with Mother in California. Temporarily, all visits with Father shall occur in Marin County. The visits shall be up to one week long and shall occur on dates agreed upon by the parents, with Father giving a minimum of 14 days' notice of his intent to visit. All visits shall be day visits only (no overnights) and shall be supervised by a responsible adult agreed upon by Mother.

Collateral Issues

5. Father shall test with Soberlink three times every day. Testing shall occur both when the children are in his care and when they are not in his care. All results shall be given to Mother in real time. Mother shall have the authority to end or prohibit any visits if she has any concern about Father's alcohol use.
6. Father shall remain completely sober. He shall participate in whatever therapies or drugs needed to maintain his sobriety.
7. Both parents shall have reasonable, unrestricted phone contact with both children, as desired by each child.
8. A review shall be set in December of 2026.

Air Fare Reimbursement

9. Father shall pay to Mother the sum of \$930.897 to reimburse her for the airline flight she had to reschedule within 30 days of the date of this order.

SO ORDERED.

Counsel for Mother shall prepare the order.

Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the

hearing for oral argument by 4:00 pm on the court day before the hearing, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.

Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Court website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.